

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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KYLE TIMMINS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. THOMAS C. PODD, Shield No. 10795 (Tax Id. No. 943688), Individually and in his Official Capacity, P.O. PATRICK C. TERLONGE, Shield No. 30090 (Tax Id. No. 939567), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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**SUMMONS**

Jury Trial Demanded

Plaintiff designates Kings County  
as the place of trial.

The basis of venue is:  
CPLR § 504(3)

**To the above-named Defendants:**

**You are hereby summoned** to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK  
October 30, 2020

COHEN & FITCH LLP  
Attorneys for Plaintiff  
110 E. 59<sup>th</sup> St., Suite 3200  
New York, N.Y. 10022  
(212) 374-9115

TO:

JAMES E. JOHNSON  
Corporation Counsel of the City of New York  
100 Church Street  
New York, New York 10007

P.O. THOMAS C. PODD, Shield No. 10795 (Tax Id. No. 943688)  
63<sup>rd</sup> Precinct  
1844 Brooklyn Ave.  
Brooklyn, NY 11210

P.O. PATRICK C. TERLONGE, Shield No. 30090 (Tax Id. No. 939567)  
63<sup>rd</sup> Precinct  
1844 Brooklyn Ave.  
Brooklyn, NY 11210

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

-----X

KYLE TIMMINS,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

**Jury Trial Demanded**

**BASIS FOR VENUE:**

**CPLR § 504(3)**

THE CITY OF NEW YORK, P.O. THOMAS C. PODD, Shield No. 10795 (Tax Id. No. 943688), Individually and in his Official Capacity, P.O. PATRICK C. TERLONGE, Shield No. 30090 (Tax Id. No. 939567), Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

Plaintiff KYLE TIMMINS by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

**FACTS**

1. Plaintiff KYLE TIMMINS is a Caucasian male and has been at all relevant times a resident of Kings County in the State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. THOMAS C. PODD, Shield No. 10795 (Tax Id. No. 943688), P.O. PATRICK C. TERLONGE, Shield No. 30090 (Tax Id. No. 939567), and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

### **The Incident**

8. On or about July 5, 2019, in the County of Kings, City, and State of New York, plaintiff KYLE TIMMINS was lawfully riding his bicycle in the vicinity of East 55th Street and Avenue N, Brooklyn, NY.

9. At approximately 12:51 a.m., plaintiff was in the above-mentioned location, when approximately two (2) police cars began to follow him. Plaintiff continued riding his bicycle towards East 68th Street and Veterans Ave. near Junion High School (“J.H.S”) 78 (Roy H. Mann)(“hereinafter Mann J.H.S.”), Brooklyn, NY.

10. Thereafter, when plaintiff arrived in the vicinity of Mann J.H.S., plaintiff was surrounded by approximately two (2) police cars.

11. Subsequently, a defendant NYPD officer (upon information and belief, defendant PODD and/or TERLONGE and/or a defendant POLICE OFFICERS “JOHN DOE” #1-10) exited his vehicle and immediately and forcefully swung his arm at plaintiff, striking him, and causing him to be thrown from his bicycle on to the ground.

12. At no time did defendant PODD and/or TERLONGE and/or a defendant POLICE OFFICERS “JOHN DOE” #1-10 have any legal justification for using such excessive force against plaintiff nor was the force used by defendants reasonable under the circumstances.

13. As a result of the excessive force used against plaintiff, plaintiff suffered serious physical injuries, including, but not limited to, a fracture to his left clavicle (which subsequently required surgical intervention), and injuries to his shoulders, back, knee, neck, face, and jaw.

14. Thereafter, defendants PODD, TERLONGE, and/or “JOHN DOE” #1-10 placed plaintiff under arrest by handcuffing his arms together.

15. Subsequently, plaintiff was transported to a nearby police precinct and then to the hospital, where he was treated for his injuries, before being taken to Central Booking and eventually released following his arraignment.

16. Following his release, plaintiff required, and sought, additional medical attention and ultimately required an invasive surgery for his injuries.

17. As a result of the foregoing, plaintiff sustained, inter alia, physical injuries, severe mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

**FEDERAL CLAIMS****FIRST CLAIM FOR RELIEF**  
**DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

18. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

19. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

20. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

21. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

23. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING**  
**EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

24. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

25. The level of force employed by defendants – upon information and belief, PODD, TERLONGE, and/or “JOHN DOE” #1-10 – was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

26. As a result of the foregoing, plaintiff sustained, *inter alia*, bodily injuries, including, but not limited to, a fracture to his left clavicle, and injuries to his shoulders, back, knee, neck, face, and jaw, which required medical treatment and/or surgical intervention.

**THIRD CLAIM FOR RELIEF ARISING  
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

28. The defendants – upon information and belief, PODD, TERLONGE, and/or “JOHN DOE” #1-10 – had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in their presence by the use of excessive force.

29. Defendants – upon information and belief, PODD, TERLONGE, and/or “JOHN DOE” #1-10 – further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

30. As a result of the defendants’ – upon information and belief, PODD, TERLONGE, and/or “JOHN DOE” #1-10 – failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ – upon information and belief, PODD, TERLONGE, and/or “JOHN DOE” #1-10 – presence, plaintiff sustained, *inter alia*, physical and emotional injuries, he was put in fear for his safety, and he was subjected to unjustified, excessive, and unreasonable force.

**FOURTH CLAIM FOR RELIEF**  
**MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

33. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. utilizing excessive force in effectuating arrests; and,
- B. keeping arrestees handcuffed during hospitalization even when they pose no risk of flight or danger to the safety of others; and,
- C. failing to intercede to prevent violations of plaintiff's constitutional rights

34. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

35. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

36. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.



37. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

38. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

39. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

#### **PENDANT STATE CLAIMS**

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. On or about October 1, 2019, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

42. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

43. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on October 30, 2020.<sup>1</sup>

44. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued including any applicable period of tolling/extension due to COVID-19.<sup>2</sup>

45. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

46. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**ASSAULT**

47. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. Defendants PODD, TERLONGE, and/or “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

49. As a result of defendants’ PODD, TERLONGE, and/or “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**BATTERY**

50. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

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<sup>1</sup> Due to the fact any applicable time limitations with respect to the General Municipal Law and/or CPLR concerning 50H hearings and/or the filing of Complaints were/are tolled/extended pursuant to N.Y. Executive Orders 202.8 and 202.28, this 50H was timely held.

<sup>2</sup> Due to the fact the Statute of Limitations date with respect to the filing of this Complaint under the CPLR fell during such time that said Statute of Limitations was/is tolled/extended pursuant to N.Y. Executive Orders 202.8 and 202.28, this Complaint is timely filed.

51. Defendant police officers PODD, TERLONGE, and/or “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

52. Defendant police officers PODD, TERLONGE, and/or “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

53. As a result of defendants’ PODD, TERLONGE, and/or “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

54. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

55. The aforementioned conduct by defendants PODD, TERLONGE, and/or “JOHN DOE” #1-10 was extreme and outrageous and exceeded all reasonable bounds of decency.

56. The aforementioned conduct was committed by defendants PODD, TERLONGE, and/or “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

57. The aforementioned conduct was committed by defendants PODD, TERLONGE, and/or “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

58. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

59. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright, and loss of freedom.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW**  
**NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

62. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

63. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain, and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

**WHEREFORE**, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York  
October 30, 2020

BY: \_\_\_\_\_/S\_\_\_\_\_  
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